

# HOUSE . . . . . No. 2721

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## The Commonwealth of Massachusetts

PRESENTED BY:

*Erika Uyterhoeven*

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to establish privileged contact with members of the general court.

PETITION OF:

| NAME:                    | DISTRICT/ADDRESS:     | DATE ADDED:      |
|--------------------------|-----------------------|------------------|
| <i>Erika Uyterhoeven</i> | <i>27th Middlesex</i> | <i>1/16/2025</i> |

# HOUSE . . . . . No. 2721

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By Representative Uytterhoeven of Somerville, a petition (accompanied by bill, House, No. 2721) of Erika Uytterhoeven for legislation to authorize persons committed to a state correctional facility privileged contact with members of the General Court. Public Safety and Homeland Security.

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## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act to establish privileged contact with members of the general court.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           Section 87A of chapter 127 of the General Laws, inserted by chapter 64 of the acts of  
2           2023, is hereby amended by adding the following 2 subsections:-

3           (d) The department of correction, sheriff, prison, correctional facility or communication  
4           services contractor shall not monitor or record the content of voice, video or electronic  
5           communications between a member of the house of representatives or senate and a person  
6           committed to a state correctional facility, state prison or county correctional facility, including a  
7           jail or house of correction.

8           (e) A person committed to a state correctional facility, state prison or county correctional  
9           facility, including a jail or house of correction, shall have the privilege to refuse to disclose and  
10          to prevent others from disclosing confidential communications made during in-person, voice,  
11          video or electronic communications with a member of the house of representatives or the senate;

12 provided, that a communication shall be considered confidential if it is not intended to be  
13 disclosed to a third person; and provided further, that this privilege shall not apply to  
14 communications relevant to the furtherance of a crime or fraud.